

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MICHAEL TODD SCOTT,

Petitioner

VS.

SYLVIA EUGENIA CEDIEL,

Respondent

) Case Number: FDI-18-790419

) Hearing Date: May 21, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: CHANGE OF SPOUSAL OR PARTNER SUPPORT, CHILD SUPPORT,
PROPERTY CONTROL

TENTATIVE RULING

The parties are ordered to appear via Zoom or in person at 9am on 5/21/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

The Court will likely need to continue this matter to a future hearing date and order both parties to file updated Income and Expense Declarations. However, the Court would also like to hear from Father regarding why he has not filed an Income and Expense Declaration, as required by California Rules of Court, rule 5.260(a)(2).

A. Procedural History

- 1) The parties in this matter are Petitioner Michael Todd Scott (Father) and Respondent Sylvia Eugenia Cediell (Mother). The parties married on 5/4/2007 and their date of separation was 8/30/2018, for a marriage of 11 years and 3 months. The parties have two minor children, Lucia (DOB: 11/27/2009, age 16) and Bianca (DOB: 10/17/2012, age 13). Both parties are currently self-represented.

1 2) On 11/3/2021, a Stipulated Judgment was entered in this matter. The Stipulated Judgment
2 provides in relevant part:

- 3 a. Father shall pay Mother \$392 per month in base guideline child support (based on Father
4 earning \$25,000 per month in base salary and Mother earning \$20,833 per month in base
5 salary);
- 6 b. The parties shall share equally any unreimbursed medical expenses for the children, any
7 employment-related childcare expenses, education costs, and any expenses related to the
8 children's extracurricular activities and camps;
- 9 c. Father shall pay Mother "non-modifiable base spousal support in the amount of \$1,308
10 per month" which "shall not be subject to modification, extension, or revocation by any
11 court"
- 12 d. "As additional spousal support, [Husband] shall pay additional support of 50% of his
13 annual bonus, after tax, up to a maximum payment of \$33,592 per year... If [Wife] seeks
14 to obtain a modification of child support and is awarded bonus child support in the future,
15 any such bonus child support owed shall be offset from the spousal support bonus
16 payments set forth herein. The parties expressly agree that the maximum [Husband] shall
17 pay for any additional support owed is 50% of his bonus, up to a maximum of \$33,592 /
18 year after tax."
- 19 e. "Spousal support shall be terminated upon the first of the following events to occur, at
20 which time the Court's jurisdiction to award spousal support to either Party will
21 terminate: the date of December 31, 2025, Sylvia's remarriage or cohabitation with a life
22 partner, the death of either Part, further agreement between the parties, or further order of
23 the Court."

24 3) Now on for hearing is Mother's Request for Order filed 12/24/2025. Mother asks the Court to
25 modify the current child support order as well as the current spousal support order. The bases for
26 Mother's request are: "child support is ending" (Mother was likely referring to spousal support),
27 Father has substantially greater income, and Mother needs continued support to maintain her
28 standard of living and pay for the children's expenses. Mother also checked the box for
29 "attorney's fees and costs" on the first page of the Request for Order but did not include any

information in section 6 (Attorney's Fees and Costs) of the Request for Order and did not specify the amount in attorney's fees she is requesting.

- 4) On 12/24/2025, Mother filed an Income and Expense Declaration. Mother states she is 49 years old and has worked as a San Francisco Public Defender since March 2020. Mother states she earns on average \$11,721 per month in gross. Mother estimates that Father earns \$50,000 per month, but does not state the basis for her estimate. Mother states she has \$182,920 in cash assets and \$160,000 in real property. Mother states her monthly expenses total \$11,975.31.
- 5) On 2/10/2026, Father filed a Responsive Declaration stating he does not consent to any of the orders requested. Father requested a brief continuance of the hearing. Father stated he has reengaged his prior attorneys at Moradi Neuffer LLP. Father stated he is a partner at Orrick and needs time to work with his attorneys to file an updated Income and Expense Declaration and a more detailed responsive declaration.
- 6) Per the Proof of Electronic Service filed 2/10/2026, Father's Responsive Declaration was emailed to Mother on 2/10/2026.
- 7) Mother has not filed a Reply Declaration.
- 8) The Court granted Father's request to continue the prior 2/17/2026 hearing date to 4/14/2026.
- 9) On 3/12/2026, attorney Chris Norris filed a Substitution of Attorney wherein Mr. Norris substituted into this case as Father's attorney of record.
- 10) On 3/19/2026, Mother filed a Notice of Withdrawal of her Request for Order as to the Issue of Spousal Support Only. Mother stated that her Request for Order "remains pending as to all other issues raised therein, including but not limited to child support and attorney's fees."
- 11) On 3/30/2026, an Agreement and Order to Reschedule Hearing was filed containing the parties' agreement continue the 4/14/2026 hearing to 5/21/2026.
- 12) On 4/10/2026, attorney Chris Norris filed a Substitution of Attorney wherein Mr. Norris substituted out of this case as Father's attorney of record.
- 13) No other pleadings have been filed since the prior 2/17/2026 hearing date.

B. Findings and Order

- 1) **The parties are ordered to appear. The Court will likely need to continue this matter to a future hearing date and order both parties to file updated Income and Expense**

Declarations. However, the Court would also like to hear from Father regarding why he has not filed an Income and Expense Declaration as required by California Rules of Court, rule 5.260(a)(2).